TAX EXEMPTION CERTIFICATE AND AGREEMENT

AMONG

ILLINOIS FINANCE AUTHORITY,

NORTH SHORE ICE ARENA, LLC,

WILMETTE HOCKEY ASSOCIATION, INC.

AND

WINNETKA HOCKEY CLUB, INC.

$8,490,000

Illinois **Finance Authority**

Sports Facility Revenue Bonds

(North **Shore Ice Arena Project)**

Series 2008

JANUARY 25, 2008

SECTION

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TAX EXEMPTION CERTIFICATE AND AGREEMENT

THIS TAX **EXEMPTION** CERTIFICATE AND AGREEMENT is dated January 25, 2008. The **undersigned** are duly qualified officers of Illinois Finance Authority (the ***"Issuer"),*** NORTH SHORE ICE ARENA, LLC (the "*Company*"), Wilmette Hockey Association, Inc. ("*Wilmette Hockey Association*"), and Winnetka Hockey Club, Inc. ("***Winnetka*** *Hockey Club"* and together with Wilmette Hockey Association, **the** "*Guarantors*"). The undersigned officer of the Issuer is charged, with others, with the responsibility for executing and delivering the Bonds. **The** Bonds were authorized pursuant to a **duly** authorized Resolution of the **Issuer** and are being issued pursuant to that certain Trust Indenture **dated** as of January 1, 2008 **(**the "*Indenture")* between **the** Issuer and Amalgamated **Bank** of Chicago, as trustee (the "***Trustee*"). Sale** Proceeds of the Bonds will be provided to the Company pursuant to that certain Loan Agreement dated as of January 1, 2008 among the Issuer, **the** Guarantors and the Company **(**the *"Loan Agreement*"). **Certain** terms are defined **in** Article **I** hereof. Terms used herein and not defined **in** Article I shall **have** the meanings given to them **in the** Indenture.

One purpose of executing this Tax Agreement is to set forth various facts regarding the Bonds and to establish the expectations of the Issuer, the **Company and** the Guarantors as to future events regarding the Bonds and the use of Bond proceeds. To the extent such facts do not relate directly to the Issuer, the Issuer is relying upon the certifications of the Company and the Guarantors, which they believe is reasonable and prudent. **The** certifications**,** covenants and representations contained herein **are** made

on behalf of the Issuer, the Company and the Guarantors for the benefit of the owners from time to time of the Bonds.

The Issuer, the Company and the Guarantors hereby covenant that they will not take any action, omit to take any action or permit the taking or omission of any action within their control (including, without limitation, making or permitting any use of the proceeds of the Bonds) if taking, permitting or omitting to take such action would cause any of the Bonds to be an arbitrage bond within the meaning of the Code or would otherwise cause the interest on the Bonds to be included in the gross income of the recipients thereof for federal income tax purposes. The Issuer acknowledges that, in the event of an examination by the Internal Revenue Service of the exemption from federal income taxation of interest on the Bonds, under present rules, the Issuer is treated as the "taxpayer" in such examination. The Company and the Guarantors agree that they will direct the Issuer to respond in a commercially reasonable manner to any inquiries from the Internal Revenue Service in connection with such an examination and the Issuer agrees that it will reasonably cooperate with the Company and the Guarantors (at the expense of the Company) in this regard.

ARTICLE I

DEFINITIONS

In addition to such other words and terms used and defined in this Tax Agreement, the following words and terms used in this Tax Agreement shall have the following meanings unless, in either case, the context or use clearly indicates another or different meaning is intended:

"*Affiliated Person*" means any Person that (a) at any time during the six months prior to the execution and delivery of the Bonds, (i) has more than five percent of the voting power of the governing body of the Issuer, the Company or either of the Guarantors in the aggregate vested in its directors, officers, owners, and employees or, (ii) has more than five percent of the voting power of its governing body in the aggregate vested in directors, officers, board members, owners, members or employees of the Issuer,

the Company or either of the Guarantors or (b) during the one-year period beginning six months prior to the execution and delivery of the Bonds, (i) the composition of the governing body of which is modified or established to reflect (directly or indirectly) representation of the interests of the Issuer, the Company or either of the Guarantors (or for which an agreement, understanding, or arrangement relating to such a modification or establishment during that one-year period) or (ii) the composition of the governing body of the Issuer, the Company or either of the Guarantors is modified or established to reflect (directly or indirectly) representation of the interests of such Person (or for which an agreement, understanding, or arrangement relating to such a modification or establishment during that one-year period).

"Bond Counsel" means Barnes & Thornburg LLP or any other nationally recognized firm of attorneys

experienced in the **field** of municipal bonds whose opinions are generally accepted by purchasers of municipal bonds.

"Bond Fund" means, collectively, **the** Interest Fund, the Bond Sinking Fund **and** the Debt Service Fund, excluding the Capitalized Interest Account.

"Bonds" means the **$**8,490,000 aggregate principal amount of Sports Facility Revenue Bonds (North Shore Ice Arena Project), Series 2008, issued by **the** Issuer pursuant to the terms and conditions of the Indenture.

"Capital Expenditures" means costs of a type that are properly **chargeable** to a capital account under the Code (or would be so chargeable with **a** proper election) under federal income tax principles taking into account the definition of Placed-in-Service set forth herein.

"Capitalized Interest Account" means the portion of the Bond Interest Account into which, on the date of **the** Closing, **Sale** Proceeds, in the amount of $480,665.52, are deposited.

"Closing" means the date of this **Tax** Agreement, which is **the** first date on which the Issuer is receiving **the** purchase price for **the Bonds**.

"Code" means the Internal Revenue Code of **1986**.

*"**Commingled** Fund"* means any fund or account containing both Gross Proceeds and an amount in excess of $25,000 that are not Gross Proceeds if **the** amounts in the fund or account are invested and accounted for, collectively, without regard to the source of funds **deposited** in **the** fund or account. An open-ended regulated investment company under Section **851 of the** Code is not a commingled fund.

"Control" means the possession, directly or indirectly through others, of either of the following discretionary and non-ministerial rights or powers over another entity: **(a)** to approve and to remove without cause a controlling portion of the governing body of a Controlled Entity; or (b) to require the use of funds or **assets** of a Controlled Entity for any purpose.

"Controlled Entity" means any entity or one of a group of **entities** that is subject to Control by a Controlling **Entity** or group of Controlling Entities.

"Controlled Group" means a group of entities directly or indirectly subject to Control by the same entity or group of **entities**, including the entity that has **the** Control of the other **entities**.

"Controlling Entity" means **any** entity or **one** of a group of entities directly or indirectly having Control **of any** entities or group **of** entities.

"Costs of Issuance" means the costs of issuing the Bonds, including the Underwriter's discount or fees, and legal fees.

"De *minimis Amount of Original Issue Discount* or *Premium*" means with respect to an obligation (a) any original issue discount or premium that does not exceed two percent of the stated redemption price at maturity of the Bonds plus (b) any original issue premium that is attributable exclusively to reasonable Underwriter's compensation.

"Debt Service Reserve Fund" means the Debt Service Reserve Fund under the Indenture.

"External Commingled Fund" means a Commingled Fund in which the Issuer, the Company, the Guarantors and all Related Persons to the Issuer, the Company and the Guarantors, own, in the aggregate, not more than ten percent of the beneficial interests.

"Financing Document" means the Loan Agreement identified in the preamble to this Tax Agreement.

"GIC" means (a) any investment that has specifically negotiated withdrawal or reinvestment provisions and a specifically negotiated interest rate and (b) any agreement to supply investments on two or more future dates (e.g., a forward supply contract).

"*Gross Proceeds*" means amounts in the funds listed on *Exhibit C* hereto.

"Indenture" means that certain indenture of trust pursuant to which the Bonds are being issued and identified in the preamble to this Tax Agreement.

"Issuer" is defined in the preamble to this Tax Agreement.

"*Net Sale Proceeds*" means amounts actually or constructively received from the sale of the Bonds reduced by any such amounts that are deposited in a reasonably required reserve or replacement fund for the Bonds.

"Person" means any entity with standing to be sued or to sue, including any natural person, corporation, body politic, governmental unit, agency, authority, partnership, trust, estate, association, company, or group of any of the above.

"*Placed-In-Service*" means the date on which, based on all the facts and circumstances (a) a facility has reached a degree of completion that would permit its operation at substantially its design level and (b) the facility is, in fact, in operation at such level.

"Preliminary Expenditures" means architectural, engineering, surveying, soil testing, Costs of Issuance

and similar costs **that** were incurred prior to commencement of construction, rehabilitation or acquisition of the Project, but do not include any costs related to **land** acquisition, site preparation and similar costs incident to commencement of construction.

"Project" means the acquisition, construction, renovation and equipping of a facility of the Company, as defined **in the** Indenture.

"Project Fund" means the Project Fund.

*"Qualified Tax **Exempt** Obligations"* means **(a)** any obligation described in Section 103**(a)** of the Code, the interest on which is excludable from gross income of the owner thereof for federal income tax purposes; (b) an interest in a regulated investment company to the extent that at least ninety-five percent of the income to the holder of the interest is interest which is excludable from gross income under

Section 103 of the Code **of** any **owner** thereof for federal income **tax** purposes; **and** (c) certificates of **indebtedness** issued **by the United** States Treasury pursuant to the Demand Deposit State and Local Government Series **program** described **in 31** C.F.R. part 344.

"Rebate Fund" means the fund, if **any,** identified and defined in Section 4.2 herein.

"Rebate Provisions" means the rebate requirements contained in Section 148(f) of the Code and in the Regulations.

"Regulations" means United States **Treasury** Regulations dealing with the tax-exempt bond provisions of **the** Code.

"Reimbursed Expenditures" means amounts, if any, used from **Sale** Proceeds **and** investment earnings thereon to reimburse the Company for **an** expenditure **paid** prior to Closing.

"***Reimbursement** Allocation*" means the act of allocating the **amount** of **Sale** Proceeds indicated on *Exhibit A* to reimburse Reimbursed Expenditures.

"*Related Person"* means any member of the same Controlled Group as the Issuer, the Company or the Guarantors.

"Replacement Proceeds" means "replacement proceeds" within the meaning of the Regulations, including without **limitation** amounts described **in** Section 3.3(a)(ii), **(iii), (iv), (v)** and (**vi**) hereof.

"Sale Proceeds" means amounts actually or constructively received from the sale of the Bonds, including (a) amounts used to pay the Underwriter's discount or compensation and accrued interest, other than accrued interest for a period not greater than one year before Closing but only if it is to be paid within one year after Closing and (b) amounts derived from the sale of any right that is part of the terms of a Bond or is otherwise associated with a Bond (e.g., a redemption right).

"Tax Agreement" means this Tax Exemption Certificate and Agreement.

"Underwriter" means, Oppenheimer & Co. Inc., the purchaser of the Bonds from the Issuer.

"Yield" means that discount rate which when used in computing the present value of all payments of principal and interest paid and to be paid on an obligation produces an amount equal to the obligation's purchase price (or in the case of the Bonds, the issue price as established in Section 5.1), including accrued interest. For purposes of computing the Yield on the Bonds and on investments, the same compounding interval (which must be an interval of not more than one year) and standard financial conventions (such as a 360-day year) must be used.

"Yield Reduction Payment" means a rebate payment or any other amount paid to the United States in the same manner as rebate amounts are required to be paid or at such other time or in such manner as the Internal Revenue Service may prescribe that will be treated as a reduction in Yield of an investment under the Regulations.

ARTICLE II

DESCRIPTION OF PROJECT

Section 2.1. Purpose of the Bonds. The Bonds are being issued to finance the Project in a prudent manner consistent with the needs of the Company. Sale Proceeds of the Bonds will be provided to the Company pursuant to the Financing Document. A breakdown of the sources and uses of funds is attached as *Exhibit A.*

Section 2.2. The Project - Binding Commitment and Timing. The Company has incurred or will, within six months of the Closing, incur a substantial binding obligation (not subject to contingencies within the control of the Issuer, the Company, the Guarantors or any Related Person to any of them) to a third party to expend at least five percent of the Net Sale Proceeds on the Project. It is expected that the work of acquiring and constructing the Project and the expenditure of amounts deposited into the Project Fund will continue to proceed with due diligence through October 1, 2008, at which time it is anticipated that all Sale Proceeds and investment earnings thereon will have been spent.

It is expected that the Sale Proceeds deposited into the Project Fund, including investment earnings on the Project Fund, will be spent to pay costs of the Project and interest on the Bonds in accordance with the estimated drawdown schedule contained in *Exhibit B.*

Estimated total investment income as set forth in *Exhibit* A has been calculated on the basis of an expected overall investment rate as set forth therein on amounts in the Project Fund, assuming that (a) the costs of the Project are drawn down in accordance with the schedules contained in *Exhibit B* and (b) Costs of Issuance will be drawn down during the three-month period after Closing. The foregoing assumptions represent the Issuer's, the Company's and the Guarantors' best estimate, as of this date, of the draw down schedules of and investment earnings on the Sale Proceeds.

Section 2.3. Reimbursement. Except for Reimbursed Expenditures, as identified on *Exhibit A*, none of the Sale Proceeds or investment earnings thereon will be used to reimburse the Issuer, the Company or the Guarantors for an expenditure paid prior to the date of Closing. The Issuer, the Company and the Guarantors are making the Reimbursement Allocation to allocate a portion of the Sale Proceeds to the Reimbursed Expenditures incurred in connection with acquiring, constructing, renovating, improving and equipping the Project and will, after such Reimbursement Allocation, treat such proceeds as being spent. In support of the Reimbursement Allocation, the Issuer, the Company and the Guarantors represent as follows:

(a) Except as described in (f) below, the Company declared an official intent to reimburse such expenditures not later than 60 days after the date such expenditures were paid. At the time the official intent described above was declared, the Company reasonably expected to reimburse the non-Preliminary Expenditures related thereto with the proceeds of a future borrowing. A copy of the declaration of such intent is attached hereto as *Exhibit D.* With respect to expenditures paid within the 60 day period ending on this date and with respect to which no declaration of intent was previously made, the Company hereby declares its intent to reimburse such expenditures as identified in *Exhibit A* and in the description of the Project contained herein. The Issuer, the Company and the Guarantors hereby allocate Sale Proceeds in the amount indicated on *Exhibit A* to reimburse the Reimbursed Expenditures.

(b) Except as described in (f) below, the Closing is within 18 months after the later of (i) the first date on which a Reimbursed Expenditure was paid or (ii) the first date on which the property relating to a Reimbursed Expenditure was Placed-in-Service or abandoned, but in no event more than three years

after the first date on which a Reimbursed Expenditure was paid.

(c) All Reimbursed Expenditures represent **Capital** Expenditures or Costs of Issuance.

(d) The Issuer, the Company or the Guarantors acknowledge that **if within** one **year after** Closing the Issuer, the Company or the Guarantors deposits any money or other property into any fund or account (other than amounts deposited into a bona fide debt service fund) to pay principal of or interest on the Bonds or any other tax-exempt obligations in **an** amount corresponding to Gross Proceeds used to reimburse a Reimbursed Expenditure (**unless** such money or other property constitutes proceeds of a **borrowing** by **the** Issuer, the Company or **the** Guarantors**),** it may adversely affect the **tax**-exempt status of the Bonds. The Issuer, the Company and the Guarantors further acknowledge **that** in the Indenture and Financing Document, respectively, they have covenanted not to take any action that would cause interest on the Bonds to become includable in **the** gross income of the holders thereof for federal income tax purposes.

(e) No Reimbursement Allocation will employ any action (i) that results in the Issuer issuing more Bonds, issuing Bonds earlier, or allowing Bonds to remain outstanding longer than is reasonably necessary to accomplish **the** governmental purposes of the Bonds, based upon all of the facts and circumstances or (ii**)** that avoids the restrictions of Sections 142 through 147 of the Code.

(f) The restrictions in **(a)** and **(b**) above do not apply to (1) an amount of Preliminary Expenditures that does not exceed 20% of the **Sale** Proceeds being used to finance the portion of the Project with respect to **which** the Preliminary Expenditures were incurred, **(ii)** Costs of Issuance or (iii) an amount not in excess of the lesser of $100,000 or **five** percent of the **Sale** Proceeds.

Section 2.4. Investment of Bond Proceeds. Not more than 50% of **the** Sale Proceeds and investment earnings thereon are or will be invested in investments (other than Qualified Tax Exempt Obligations) having a Yield that is substantially guaranteed for four **years** or more. No portion of the Bonds is being

issued solely for the purpose of investing a portion of Sale Proceeds or investment earnings thereon at a Yield higher than the Yield on the Bonds.

Section 2.5. *No Grants*. None of the Sale Proceeds or investment earnings thereon will be used to make grants to any person.

Section 2.6. *Hedges*. Neither the Company, the Guarantors, the Issuer, nor any Related Person to any of them has entered into or expects to enter into any hedge (e.g., an interest rate swap, interest rate cap, futures contract, forward contract or an option) with respect to the Bonds. The Company, the Guarantors and the Issuer acknowledge that any such hedge could affect, among other things, the calculation of Bond Yield under the Regulations. The Internal Revenue Service could recalculate Bond Yield if the failure to account for the hedge fails to clearly reflect the economic substance of the transaction.

The Company, the Guarantors and the Issuer also acknowledge that if they acquire a hedging contract with an investment element (including e.g., an off-market swap agreement, or any cap agreement for which all or a portion of the premium is paid at, or before the effective date of the cap agreement), then a portion of such hedging contract may be treated as an investment of Gross Proceeds of the Bonds, and be subject to the fair market purchase price rules, rebate and yield restriction. The Company, the Guarantors and the Issuer agree not to use proceeds of the Bonds to pay for any such hedging contract in whole or in part. The Company, the Guarantors and the Issuer also agree that they will not give any assurances to any Bond holder, or any other credit or liquidity enhancer with respect to the Bonds that any such hedging contract will be entered into or maintained. The Company, the Guarantors and the Issuer recognize that if a portion of a hedging contract is determined to be an investment of gross proceeds, such portion may not be fairly priced even if the hedging contract as a whole is fairly priced.

Section 2.7. *Payments to Related Persons*. None of the Sale Proceeds or investment earnings thereon will be paid to the Issuer, the Company, the Guarantors or any Related Person to the Issuer, the Company or the Guarantors, except for reimbursements to the Company for amounts paid to persons other than the Issuer, the Company, the Guarantors or any Related Person to the Issuer, the Company or the Guarantors, and the Issuer's fee described in Section 5.5 of the Tax Agreement.

Section 2.8. *Internal Revenue Service Audits.* The Issuer represents that the Internal Revenue Service has not contacted the Issuer regarding any obligations issued by or on behalf of the Issuer the proceeds of which have been or are to be used to finance or refinance assets for the Company.

Each of the Company and the Guarantors represents that it has not been contacted by the Internal Revenue Service or any issuer of bonds, the proceeds of which were lent to (or otherwise used for the benefit of) the Company or the Guarantors regarding any examination of any tax exempt bonds issued for the benefit of the Company or the Guarantors. To the best of the knowledge of the Company and the Guarantors, no bonds issued as tax exempt bonds for the benefit of the Company or

the Guarantors are or have been under examination by the Internal Revenue Service.

ARTICLE III

USE OF PROCEEDS; DESCRIPTION OF FUNDS

Section 3.1. *Use* of *Proceeds*. (*a*) *Exhibit* A describes the use of the Sale Proceeds and investment earnings thereon and the funds held under the Indenture at the time of Closing. No Sale Proceeds will be used to prepay for goods or services to be received over a period of years prior to the date such goods or services are to be received. No Sale Proceeds or any investment earnings thereon will be used to pay for or otherwise acquire goods or services from an Affiliated Person.

(b) As shown on *Exhibit A*, only the following funds and accounts will be funded at Closing: the Project Fund, the Debt Service Reserve Fund and the Capitalized Interest Account. Other than the foregoing funds, the only other funds and accounts created under the Indenture is the Bond Fund, the Expense Fund, the Repair and Replacement Fund, the Optional Redemption Fund and the Operation Reserve Fund. No amounts, regardless of the source, are being deposited into these other funds and accounts at Closing.

(c) Principal of and interest on the Bonds will be paid from the Bond Fund.

(d) Costs of Issuance in an amount not exceeding two percent of the face amount of the Bonds incurred in connection with the Bonds will be paid from Sale Proceeds. Any Costs of Issuance in excess of amounts permitted to be paid from Sale Proceeds of the Bonds will be paid by the Company from a source other than tax-exempt financing.

(e) The costs of the Project will be paid from the Project Fund and no other moneys (except for investment earnings on amounts in the Project Fund) are expected to be deposited therein.

(f) Payments made by the Company under the Financing Document will be deposited in the Bond Fund, when received by the Trustee, to be used to pay interest on and principal of the Bonds, as provided in the Indenture.

(g) On the date of the Closing, Sale Proceeds, in the amount set forth in *Exhibit A*, will be deposited in the Capitalized Interest Account. On or before each interest payment date, commencing August 1, 2008, the Trustee will withdraw from moneys on deposit in the Capitalized Interest Account the amount set forth in the Indenture to pay interest on the Bonds, until the moneys on deposit in the Capitalized Interest Account have been exhausted (expected to be February 1, 2009).

(h) On the date of the Closing, Sale Proceeds, is the amount set forth in *Exhibit* A, will be deposited in the Debt Service Reserve Fund, which amount is equal to $633,125 (such amount, the "Debt Service Reserve Fund Requirement"). The Debt Service Reserve Fund secures the Bonds. Based on the Certificate

of Underwriter attached as *Exhibit E*, the Debt Service Reserve Fund qualifies as a reasonably required reserve or replacement fund (the Debt Service Reserve Requirement does not exceed an amount

equal to the least of: (i) ten percent of the stated principal amount of the Bonds; (ii) the maximum annual principal and interest requirements on the Bonds; or (iii) one hundred twenty-five percent of the average annual principal and interest requirements on the Bonds).

Section 3.2. *Purpose of Bond Fund*. The Bond Fund will be used primarily to achieve a proper matching of revenues with principal and interest payments on the Bonds in each bond year. The Bond Fund will be depleted at least once each bond year, except for a reasonable carry over amount not to exceed the greater of (a) the earnings on the investment of moneys in the Bond Fund for the immediately preceding bond year or (b) 1/12th of the principal and interest payments on the Bonds for the

immediately preceding bond year.

Section 3.3. No Other Gross Proceeds. (a) Except as identified on *Exhibit C* hereto, after the issuance of the Bonds, neither the Issuer, the Company, the Guarantors nor any Related Person to any of them has or will have any property, including cash, securities or any other property held as a passive vehicle for the production of income or for investment purposes, that constitutes:

Fund);

(i) Sale Proceeds;

(ii) amounts in any fund or account with respect to the Bonds (other than the Rebate

(iii) amounts that have a sufficiently direct nexus to the Bonds or to the governmental purpose of the Bonds to conclude that the amounts would have been used for that governmental purpose if the Bonds were not used or to be used for that governmental purpose (the mere availability or preliminary earmarking of such amounts for a governmental purpose, however, does not itself establish such a sufficient nexus);

(iv) amounts in a debt service fund, redemption fund, reserve fund, replacement fund or any similar fund to the extent reasonably expected to be used directly or indirectly to pay principal of or interest on the Bonds or any amounts for which there is provided, directly or indirectly, a reasonable assurance that the amount will be available to pay principal of or interest on the Bonds or any credit enhancement or liquidity device with respect to the Bonds, even if the Issuer, the Company, the Guarantors or any Related Person to any of them encounters financial difficulties;

(v) any amounts held pursuant to any agreement (such as an agreement to maintain certain levels of types of assets) made for the benefit of the owners of the Bonds or any credit enhancement provider, including any liquidity device or negative pledge (e.g., any amount pledged to pay principal of or interest on an issue held under an agreement to maintain the amount at a particular level for the direct or indirect benefit of the owners of the Bonds or a guarantor of the Bonds); or

(vi) amounts actually or constructively received from the investment and reinvestment of the amounts described in (i) or (ii) above.

(b) No compensating balance, liquidity account, negative pledge of property held for investment purposes or similar arrangement exists with respect to, in any way, the Bonds, the Financing Document, or any credit enhancement or liquidity device related to the Bonds.

(c) The term of the Bonds is not longer than is reasonably necessary for the governmental purposes of the Bonds because the weighted average maturity of the Bonds does not exceed 120 percent of the average reasonably expected economic life of the Project (the weighted average maturity of the Bonds is 21.566 years; and 120 percent of the average reasonably expected economic life of the Project is 38.0208 years (31.6840 years times 120%).

(d) All property subject to the leasehold mortgage securing the Bonds is and will be used by the Company in the conduct of its trade or business, and none of such property consists of securities, obligations, annuity contracts or other property held principally as a passive vehicle for the production of income.

Section 3.4. Expense Fund. A portion of the proceeds of the Bonds will, on the date of the Closing, be deposited in the Expense Fund. Amounts on deposit in the Expense Fund will be disbursed for the payment of any Costs of Issuance. No amounts in the Expense Fund are reasonably expected to be used directly or indirectly to pay any principal of or interest on the Bonds. While amounts in the Expense Fund are pledged to pay the principal of and interest on the Bonds, it is reasonably expected that all amounts in the Expense Fund will be required to pay Costs of Issuance. Therefore, there is and can be no reasonable assurance that any amounts in the Expense Fund will be available to pay any principal of or interest on the Bonds, even if the Issuer, the Company or the Guarantors encounters financial difficulties.

Section 3.5. *Repair and Replacement* Fund. The Repair and Replacement Fund will be funded from deposits by the Company at the rate of (i) $5,000 per quarter, on the first day of each quarter, for 20 consecutive quarters, commencing on January 1, 2009 until the amount on deposit in the Repair and Replacement Fund is equal to $100,000 (the "Repair and Replacement Fund Requirement"). Once the balance in the Repair and Replacement Fund is equal to $100,000, no additional deposits shall be made in the Repair and Replacement Fund until the balance of the Repair and Replacement Fund is reduced below $100,000, at which point the Repair and Replacement Fund will be funded from deposits at the rate of $5,000 per quarter, until the amounts on deposit in the Repair and Replacement Fund is equal to the Repair and Replacement Fund Requirement. Moneys deposited in the Repair and Replacement Fund will be disbursed to the Company from time to time to meet the capital expenditures relating to the maintenance and/or repair of the Project ("Repair and Replacement Costs"). No amounts in the Repair and Replacement Fund are reasonably expected to be used directly or indirectly to pay any principal of or interest on the Bonds. While amounts in the Repair and Replacement Fund are pledged to pay the principal of and interest on the Bonds, it is reasonably expected that all amounts in the Repair and Replacement Fund will be required to pay Repair and Replacement Costs. Therefore, there is and can be no reasonable assurance that any amounts in the Repair and Replacement Fund will be available to pay any principal of or interest on the Bonds, even if the Issuer,

the Company or the Guarantors encounters financial difficulties.

Section 3.6 *Operation Reserve* Fund. The Trustee will deposit to the Operation Reserve Fund any remaining moneys from the Revenue Fund after the Trustee has made the required deposits to the Interest Fund, the Bond Sinking Fund, the Debt Service Reserve Fund and the Repair and Replacement Fund. Moneys in the Operation Reserve Fund may be transferred to the Company as necessary to pay for (i) operating expenses of the Company in the event of shortfalls in the operating income of the Project or (ii) extraordinary repair and maintenance items pertaining to the Project ("Operation Reserve Costs"). No amounts in the Operation Reserve Fund are reasonably expected to be used directly or indirectly to pay any principal of or interest on the Bonds. While amounts in the Operation Reserve Fund are pledged to pay the principal of and interest on Bonds, and any moneys then on deposit in the Operation Reserve Fund as of December 1 of each year, commencing in the year 2018, will be applied by the Trustee to the optional redemption of the Bonds, it is reasonably expected that all amounts in the Operation Reserve Fund will be required to pay Operation Reserve Costs. Therefore, there is and can be no reasonable assurance that any amounts in the Operation Reserve Fund will be available to pay any principal of or interest on the Bonds, even if the Issuer, the Company or the Guarantors encounters financial difficulties.

3.7. Optional Redemption Fund. In the event of (i) prepayment by or on behalf of the Company of amounts payable on the Bonds, including prepayment with condemnation or insurance proceeds or proceeds of a sale consummated under threat of condemnation, or (ii) deposit with the Trustee by the Company or the Issuer of moneys from any other source for redeeming Bonds or purchasing Bonds for cancellation, such moneys will be deposited into the Optional Redemption Fund. Moneys on deposit in the Optional Redemption Fund will be used for the redemption or purchase of Bonds. Amounts on

deposit to the Optional Redemption Fund may not be invested at a Yield in excess of the Bond Yield, except as set forth in Section 5.2(b)(iv) hereof.

3.8. *Mixed Use Facility*. The facility to be constructed with the proceeds of the Bonds (the "Facility") contains two or more separate and discrete portions, commonly known as the concession area and the "pro-shop" (collectively, the "Private Use Portion of the Facility") to which use is limited (other than common area use), certain of which portions may be subject to private business use within the meaning of Section 1.141-3 of the Regulations. Proceeds of the Bonds are hereby allocated to expenditures comprising those portions of the Facility that are not subject to any such private business use, as such expenditures are made. It is anticipated that the Private Use Portion of the Facility may be subject to private business use within the meaning of Section 1.141-3 of the Regulations. As set forth on Exhibit B, the Private Use Portion of the Facility will cost approximately $144,690 to construct, and none of the Proceeds of the Bonds will be used to construct the Private Use Portion of the Facility.

ARTICLE IV

ARBITRAGE REBATE; RECORD KEEPING; INVESTMENT **DIRECTION**

Section 4.1. Compliance with *Rebate* ***Provisions***. The Issuer, the Company and the Guarantors covenant to **take** such actions and **make,** or cause to be **made**, all calculations**,** transfers and payments **that** may be necessary to comply with the Rebate Provisions applicable to **the** Bonds. The Issuer, the Company **and** the Guarantors **will** make, or cause to be made, rebate payments with respect to the Bonds in accordance with law. The Issuer **shall** be obligated to make such payments only out of amounts available under the Indenture or otherwise provided by **the** Company or the Guarantors.

Section 4.2. *Rebate Fund***.** The Issuer hereby creates **with the** Trustee a special fund to be known **as** the **"**Rebate Fund", which, if created, **shall** be continuously held, invested, expended and accounted for in accordance with the Indenture and this Tax Agreement. Moneys in the **Rebate** Fund shall not be considered moneys held for the benefit of the owners of the Bonds. Except as provided in the **Regulations,** moneys **in the** Rebate Fund (including **earnings** and deposits therein) shall be **held** in trust for payment to the United States **as** required by the Rebate Provisions and by the Regulations and as contemplated **under** the provisions of this Tax Agreement.

In addition to the amounts provided in this Tax Agreement, the Company and the Guarantors hereby agree to pay to the Trustee for deposit **in** the Rebate Fund for **payment** to the United States any amount which under the Regulations must **be** deposited in **the** Rebate Fund for payment to the United States with respect to **the** Bonds, but which is not available under the Indenture for transfer to the Rebate Fund for payment to **the** United States.

Section 4.3. Records. The Company and the Guarantors agree to keep and retain or cause to be kept and retained **until six** years after **the** Bonds are paid in full adequate records **with** respect to the investment of all Gross Proceeds **and** amounts **in** the Rebate Fund **(except as provided in** Section 4.4(**c)).** Such records **shall** include:

(a) purchase price;

(b) purchase date;

(c) type of investment;

(d) accrued interest paid;

(**e**) interest rate;

(f) principal amount;

(g) **maturity**

date;

(h) interest payment date;

(i) date of liquidation; and

(j) receipt upon liquidation.

If any investment becomes Gross Proceeds on a date other than the date such investment is purchased, the records required to be kept shall include the fair market value of such investment on the date it becomes Gross Proceeds. If any investment is retained after the date the last Bond is retired, the records required to be kept shall include the fair market value of such investment on the date, the last Bond is retired. Amounts or investments will be segregated whenever necessary to maintain these records.

Section 4.4. Fair Market Value; Certificates of Deposit and Investment Agreements. The Company will direct the Trustee to continuously invest all amounts on deposit in the Rebate Fund, together with the amounts, if any, to be transferred to the Rebate Fund, in any investment permitted under this Tax Agreement and the Resolution. In directing the Trustee with respect to such investments, the Company shall take into account prudent investment standards and the date on which such moneys may be needed. Except as provided in the next sentence, all amounts that constitute Gross Proceeds and all amounts in the Rebate Fund shall be invested at all times to the greatest extent practicable, and no amounts may be held as cash or be invested in zero yield investments other than obligations of the United States purchased directly from the United States. In the event moneys cannot be invested, other than as provided in this sentence due to the denomination, price or availability of investments, the amounts shall be invested in an interest bearing deposit of a bank with a yield not less than that paid to the general public or held uninvested to the minimum extent necessary.

Gross Proceeds and any amounts in the Rebate Fund that are invested in certificates of deposit or in GICs shall be invested only in accordance with the following provisions:

(a) Investments in certificates of deposit of banks or savings and loan associations that have a fixed interest rate, fixed payment schedules and substantial penalties for early withdrawal shall be made only if either (i) the Yield on the certificate of deposit (A) is not less than the Yield on reasonably comparable direct obligations of the United States and (B) is not less than the highest Yield that is published or posted by the provider to be currently available from the provider on reasonably comparable certificates of deposit offered to the public or (ii) the investment is an investment in a GIC and qualifies under paragraph (b) below.

(b) Investments in GICs shall be made only if:

(i) the bid specifications are in writing, include all material terms of the bid and are timely forwarded to potential providers (a term is material if it may directly or indirectly affect the yield on the GIC);

(ii) the terms of the bid specifications are commercially reasonable (a term is commercially reasonable if there is a **legitimate** business purpose for the term other than to reduce **the** yield on the GIC);

(iii**) all** bidders for the GIC have equal opportunity to bid so **that,** for **example**, no bidder is given **the** opportunity to review other bids **(a** last look) before bidding;

(iv) any agent used to conduct the bidding for the GIC does not bid to provide the GIC;

(v) at least **three** of the providers solicited for bids for the GIC are reasonably competitive providers of investments of the **type** purchased (i.e., providers **that have** established industry reputations as competitive providers of the **type** of investments being purchased);

Bonds**;**

(vi) at least three of **the** entities **that** submit a bid do not have a financial interest in the

(vii) at least one of **the** entities **that** provided a bid is a reasonably competitive provider that does not have a financial interest in **the** Bonds**;**

(viii) the bid specifications include a statement notifying potential providers that submission of **a bid is** a representation **that** the potential provider **did** not consult with any other provider about its bid, **that** the bid was determined without regard to any other formal or informal agreement that the potential provider **has** with the Company or any other person (whether or not in connection with the Bonds) and **that the** bid is not being submitted solely **as** a **courtesy** to the Company or any other person for purposes of satisfying the federal income tax requirements **relating** to the **bidding for** the GIC;

(ix) the determination of the terms of the GIC takes into account the reasonably expected deposit and drawdown schedule for the amounts to **be** invested;

(x) the highest-yielding GIC for which a qualifying bid is made (determined net of broker's **fees**) **is in** fact purchased; and

(xi) the obligor on the GIC certifies the administrative costs that it is paying or expects to pay to third parties in connection with the GIC.

(c) If a GIC is purchased, the Company will retain the following records with its bond documents until three years after the Bonds are redeemed in their entirety:

(i) a copy of the GIC;

(ii) the receipt or other record of the amount actually paid for the GIC, including a record of any administrative costs paid, and the certification under paragraph (b)(xi) of this section;

(iii) for each bid that is submitted, the name of the person and entity submitting the bid, the time and date of the bid, and the bid results; and

(iv) the bid solicitation form and, if the terms of the GIC deviated from the bid solicitation form or a submitted bid is modified, a brief statement explaining the deviation and stating the purpose for the deviation.

(d) Moneys to be rebated to the United States shall be invested to mature on or prior to the anticipated rebate payment date. All investments made with Gross Proceeds or amounts in the Rebate Fund shall be bought and sold at fair market value. The fair market value of an investment is the price at which a willing buyer would purchase the investment from a willing seller in a bona fide, arm's length transaction. Except for investments specifically described in this section and United States Treasury obligations that are purchased directly from the United States Treasury, only investments that are traded on an established securities market, within the meaning of regulations promulgated under Section 1273 of the Code, will be purchased with Gross Proceeds. In general, an "established securities market" includes: (i) property that is listed on a national securities exchange, an interdealer quotation system or certain foreign exchanges; (ii) property that is traded on a Commodities Futures Trading Commission designated board of trade or an interbank market; (iii) property that appears on a quotation medium; and (iv) property for which price quotations are readily available from dealers and brokers. A debt instrument

is not treated as traded on an established market solely because it is convertible into property which is so traded.

The Company agrees that an investment of Gross Proceeds in an External Commingled Fund shall be made only to the extent that such investment is made without an intent to reduce the amount to be rebated to the United States Government or to create a smaller profit or a larger loss than would have resulted if the transaction had been at arm's length and had the rebate or Yield restriction requirements not been relevant. An investment of Gross Proceeds shall be made in a Commingled Fund other than an External Commingled Fund only if the investments made by such Commingled Fund satisfy the provisions of this Section 4.4.

A single investment, or multiple investment awarded to a provider based on a single bid may not be

used for funds subject to different rules relating to rebate or **yield** restrictions.

The foregoing provisions of this Section 4.4 satisfy various safe harbors set forth in the Regulations relating to the valuation of certain types of investments. The safe **harbor** provisions of this Section 4.4 are contained herein for the protection of the Company and the Guarantors, who have covenanted not to take **any** action to adversely affect the tax-exempt **status** of the interest on the Bonds. The Company and the Guarantor **will** contact Bond **Counsel** if it does not wish to comply with **the** provisions of this Section 4.4 and forego the protection provided by the safe harbors provided herein. Modifications to this Tax Agreement can be made in accordance with Section 7.7 hereof.

Section 4.5. Arbitrage Elections. The Issuer is not making any elections **with** respect to arbitrage on the **date** hereof.

ARTICLE V

YIELD AND INVESTMENT LIMITATIONS

Section 5.1. ***Issue*** Price. The Issuer: sold the Bonds to **the** Underwriter for **$**8,190,946.67 (representing the principal amount of **the** Bonds (**$**8,490,000), less the original issue discount of the Bonds in the amount of $**131,891.15** and less the Underwriter's discount of $167,162.18). The Underwriter has certified, inter **alia**, in **the** Certificate of **the** Underwriter set forth **as** or referenced in *Exhibit* E, which is attached hereto, that the Bonds were publicly offered.

Section 5.2. ***Yield Limits***. Except as provided in paragraphs **(a)** and (b) all Gross Proceeds shall be invested at market prices **and at** a Yield (after taking into account **any** Yield Reduction Payments**)** not in excess of the Yield on the Bonds plus, if only amounts **in the** Project Fund are subject to this **yield** limitation, 1/**8th** of one percent.

The following may be invested without Yield restriction:

(a) (i) amounts on **deposit** in the Project Fund or the Capitalized Interest Account that are reasonably expected to **pay** for the costs of the Project, costs of issuance of the Bonds, or interest on the Bonds during **the** three year period beginning on the date of issue of **the** Bonds prior to three years after Closing; **and**

(b) (i**) an** amount not to exceed the lesser of $100,000 or five percent of the **Sale** Proceeds;

(ii) amounts invested in Qualified Tax Exempt Obligations (to the extent permitted by **law** and **the** Resolution);

(iii) amounts in the Bond Fund, the Debt Service Reserve Fund (to the extent they do not exceed the Debt Service Reserve Fund Requirement), the Rebate Fund, the Expense Fund, the Repair and Replacement Fund and the Operation Reserve Fund;

(iv) all amounts other than Sale Proceeds for the first 30 days after they become Gross Proceeds; and

(v) all amounts derived from the investment of Sale Proceeds or investment earnings thereon for a period of one year from the date received.

Section 5.3. *Continuing Nature of Yield* ***Limits***. Except as provided in Section 7.7, once moneys are subject to the Yield limits of Section 5.2 hereof, such moneys remain Yield restricted until they cease to be Gross Proceeds.

Section 5.4. ***Yield*** *on the Financing Document.* Payments of repayment installments under the Financing Document will be due on not later than the day and in the same amount as payments are due on the Bonds. The earnings and profits of any temporary investments of amounts held under the Indenture, if any, will accrue to the Company, not to the Issuer. The Yield on the Financing Document, taking into account the Issuer's fee described in Section 5.5, does not exceed the Yield on the Bonds by more than one-eighth of one percent.

Section 5.5. *Other Payments Relating* to *the Bonds.* Except for (a) the payments under the Financing Document as described above, (b) Costs of Issuance relating to the Bonds, including the Underwriter's discount, (c) fees and expenses of the Trustee, and (d) an Issuer's fee of $40,470, no consideration, in cash or in kind, is being or will be paid by any person to any person in connection with or relating to issuing, carrying or redeeming the Bonds or issuing, carrying or repaying the Company's obligations under the Financing Document.

Section 5.6. Federal Guarantees. Except for investments meeting the requirements of Sections 5.2(a) hereof, investments of Gross Proceeds shall not be made in (a) investments constituting obligations of or guaranteed, directly or indirectly, by the United States (except obligations of the United States Treasury or investments an obligations issued pursuant to Section 21B(d)(3) of the Federal Home Loan Bank Act, as amended (e.g., Refcorp Strips)); or (b) federally insured deposits or accounts (as defined in Section 149(b)(4)(B) of the Code). Except as otherwise permitted in this Section and the Regulations, no portion of the payment of principal or interest on the Bonds or any credit enhancement or liquidity device relating to the foregoing is or will be guaranteed, directly or indirectly (an whole or an part), by the United States (or any agency or instrumentality thereof) including a lease, incentive payment, research or output contract or any similar arrangement, agreement or understanding with the United States or any agency or instrumentality thereof. No

portion of the Gross Proceeds has been or will be used to make loans the payment of principal or interest with respect to which as or will be guaranteed (in whole or an part) by the United States (or any agency or instrumentality thereof). Neither this Section 5.6 nor Section 5.7 applies to any guarantee by the Federal Housing Administration, the Federal National Mortgage Association, the Federal Home Loan Mortgage Corporation, the Government National Mortgage Association, the Student Loan Marketing Association or the Bonneville Power Administration pursuant to the Northwest Power Act (16 U.S.C. 839d) as an effect on the date of enactment of the Tax Reform Act of 1984.

Section 5.7. *Investments After* the *Expiration of Temporary Periods,* Etc. After the expiration of the temporary period set forth in Section 5.2(a), amounts in the Project Fund or Capitalized Interest Account may not be invested an (i) federally insured deposits or accounts (as defined an Section 149(b)(4)(B) of the Code) or (ii) investments constituting obligations of or guaranteed, directly or indirectly, by the United States (except obligations of the United States Treasury or investments an obligations issued pursuant to Section 21B(d)(3) of the Federal Home Loan Bank Act, as amended (e.g., Refcorp Strips). Any other amounts that are subject to the yield limitation in Section 5.2 because Section 5.2(a) is not

applicable and amounts not subject to yield restriction only because they are described in Section 5.2(b), are also subject to the limitation set forth an the preceding sentence.

ARTICLE VI

PROTECT

Section 6.1. *501(c)(3) Organization*. Each of the Company and each of the Guarantors is a 501(c)(3) organization. The determination letter of the Internal Revenue Service evidencing the current status of each of the Guarantors as a 501(c)(3) organization, or other evidence of such current status, is included in this transcript.

Section 6.2. Tax Owner. At all times on and after the date of Closing Bonds, the Company and the Guarantors are expected to be the sole owners and users of the Project.

Section 6.3. *$150,000,000 Limit*. Not less than 95% of the Net Sale Proceeds of the Bonds will be used to finance or refinance capital expenditures incurred after August 5, 1997.

Section 6.4. *Limitations on Private Business Uses, Payments and Security Interests*.

(a) Not more than the lesser of 5% or $15,000,000 of the proceeds of Bonds will be used, directly or indirectly, in an unrelated trade or business.

(b) Not more than 5% of the debt service on the Bonds will be derived, directly or indirectly, from payments (whether or not to the Issuer) in respect of property, or borrowed money, used or to be used in an unrelated trade or business.

(c) Not more than 5% of the debt service on the Bonds will be secured, directly or indirectly, by any interest in property used or to be used in an unrelated trade or business or by any interest in payments in respect of such property.

(d) Not more than the lesser of 5% or $15,000,000 of the proceeds of the Bonds will be used (directly or indirectly) to make or finance loans (or any arrangement treated as the economic equivalent of a loan under Federal income tax principles) to any person other than a 501(c)(3) Organization for use in its activities other than any unrelated trade or business activities.

(e) Not more than the lesser of 5% or $15,000,000 of the proceeds of the Bonds will be used (directly or indirectly) to finance the acquisition of any output property (within the meaning of Section 141(d) of the Code).

Section 6.5. *Management* Contracts. Except as otherwise advised by Bond Counsel, during the period ending on the date that no Bond is outstanding, neither Company nor the Guarantors will enter into any management or service contract with any entity (the "Management Entity"), other than a governmental entity or a 501(c)(3) organization, for the operation of any portion of the Project, unless the management contract complies with the requirements of Internal Revenue Service Revenue Procedure 97-13 or such successor authority as may exist at the time. Generally, Revenue Procedures 97-13 requires that:

(a) the Management Entity receive not more than reasonable compensation under the contract for services rendered;

(b) the Management Entity not be compensated (in whole or in part) on the basis of a share of net profits;

(c) the maximum term and cancellation provisions be as set forth in the table below for the applicable type of compensation:

Type of Compensation	Maximum Term	Cancelable at End of
Flat (at least 50%)	5 years	

3rd year

Flat **(at least 80**%)

10 years

Flat (at least 95%)

15 years

5 years

3rd year

Per Person

Per Unit

3 **years**

2nd year

Percentage of Revenues or Expenses

2 years

1st **year**

Not **Permitted**

Not Permitted

Net Profits

(d) not more than 20% of the voting power of the governing body of the Company or **either** of **the** Guarantors be vested in the Management Entity and its directors, officers, shareholders and employees and vice versa, and the overlapping board members not include the chief executive officers of the Management Entity or **the** Company or either of the Guarantors; and

(e) the Management Entity not be a Related Person with respect to the Company or either of **the** Guarantors.

Section 6.6. *Prohibited* Uses. No portion of the proceeds of the Bonds will be applied to provide **residential** rental property for family units; any **airplane,** skybox or other private luxury box**;** any facility primarily used for **gambling**; or any store the principal business of which is the sale of alcoholic beverages for consumption off premises.

ARTICLE **VII**

MISCELLANEOUS

Section 7.1. Collateral Tax ***Consequences.***

(a) The Company and the Guarantors acknowledge that, because interest on the Bonds as excludable from gross income for **federal** income **tax** purposes**,** certain consequences and special rules may result to the Company and the Guarantors with respect to federal income taxation of the Company or the Guarantors. These consequences may include the required use of the alternative depreciation system for **tax-exempt** bond financed property under Section **168(**g)(5) of the Code and **the** loss of the deductibility of interest paid with respect to the Bonds upon a "change in **use"** under Section 150(**b)** of the Code. The Company and the Guarantors acknowledge that Barnes **&** Thornburg **LLP was** not retained to advise and has no responsibility to advise the Company or the Guarantors **with** respect to any of such consequences. **The** Company and the Guarantors **will** consult **with** its own **tax** advisors with respect to such matters.

Section 7.2. *Termination.* This Tax Agreement shall terminate at the later of (a) 75 days after the Bonds **have** been fully paid and retired or (b) the **date** on **which all** amounts remaining **on** deposit an the Rebate Fund, if any, shall have been paid to **or** upon the order of the United **States** and payments, if **any,** required to satisfy the Rebate Provisions of the Code **have** been made to the United States. Notwithstanding the foregoing, the provisions of Section 4.3 hereof **shall** not terminate until the sixth anniversary of the date the Bonds are fully paid and retired, and the provisions of Section 4.4(c) and Section 7.10 shall not terminate until the **third** anniversary of the date **the** Bonds are fully paid and retired.

Section 7.3. I.R.S. *Form* 8038. The information contained in the Information Return for Tax-Exempt Private Activity Bond Issues, Form **8038** attached in the transcript for the Bonds, is true and complete. The Issuer will file Form **8038 (and** all other required information reporting forms**) in** a timely manner.

Section 7.4. No Common Plan of ***Financing***. Since December 15, 2007, neither the Issuer, **the** Company, the Guarantor nor any **Related** Person to either of them **has** sold any obligations other than the Bonds that are reasonably expected to be paid out of **substantially** the same source of funds as the Bonds. Neither the Issuer, the Company, the Guarantors nor any Related person to any of them will **sell** within 15 days after the **date** upon which **the** bonds were sold any obligations other than the Bonds that are reasonably expected to be paid out of substantially the same source **of** funds **as** the Bonds.

Section 7.5. No Sale of the Project. Neither **the** Project nor any portion thereof **has** been or is expected to be sold or otherwise disposed of**,** in whole or **in** part, prior to **the** last maturity date of the Bonds.

Section 7.6. Future Events. **The Issuer**, the Company and **the** Guarantors acknowledge **that** any **changes** in facts or expectations from those set forth herein may result **in** different Yield restrictions or rebate requirements from those set forth herein and agree to promptly contact Bond Counsel if such changes do occur.

Section 7.7. *Permitted Changes*; *Opinion of Bond Counsel.* The Yield restrictions contained in Section 5.2 or any other restriction or covenant contained herein need not be observed or **may** be changed if such nonobservance or change will not result in the loss of any exemption for the purpose of federal income taxation to which interest on the Bonds is otherwise entitled and the Issuer, the Company and the Guarantors each receive an opinion of Bond Counsel to such effect.

Section 7.8. *Public Approval*. *A* notice of public hearing (the "*Notice"*) was published in one or more newspapers of general **circulation** throughout the Issuer's jurisdiction (including in the location of the Project). At least fourteen days after the publication of the Notice a public hearing (the "*Public Hearing*") was **held** at **the** time and place specified in the Notice. The Public Hearing provided a reasonable opportunity for interested individuals to express their **views**, both orally and in writing, on the Bonds and the location and nature of the Project. After the Public Hearing, **the** Governor of **the** State of Illinois approved the issuance of the Bonds. The project is and will be located at the location set forth in the Notice, which **is within the** jurisdiction of the Issuer, and is and will be as described in the Notice. The following items relating to the approval of the Bonds are contained elsewhere in the transcript of the issuance of the Bonds:

(i) Publisher's Affidavit (including the form of "Notice of Public Hearing")

(ii) Approval

Section 7.9. *Registered Form*. The Issuer, the Company and the Guarantors each recognize that Section 149**(a)** of **the** Code requires the Bonds to be **issued** and to remain in fully registered form in order that interest thereon be exempt from federal income taxation under laws in force **at** the time the Bonds are delivered. In this connection**, the** Issuer, the Company and the Guarantors each agree that it will not take any action to permit **the** Bonds to be issued **in,** or converted into**,** bearer or coupon form.

Section 7.10. *Records*. The Issuer**, the** Company and the Guarantors **will** maintain sufficient records to demonstrate compliance with **all** covenants set forth herein. Such records will be maintained at **least** until the third anniversary of **the** payment **in** full of the Bonds.

Section *7.11. Severability*. ***If*** **any clause**, provision or section of this **Tax** Agreement is ruled invalid by any court of competent jurisdiction, the invalidity of such clause, provision or section **shall not** affect

any of the remaining clauses, sections or provisions hereof.

Section 7.12. *Counterparts.* This Agreement may be executed in several counterparts, each *of* which shall be an original and all of which shall constitute but one and the same instrument. -

Section 7.13. *Notices*. All notices, demands, communications and requests which may or are required to be given hereunder or by any party hereto shall be deemed given on the date on which the same shall have been mailed to the addresses and by the methods set forth in the Indenture.

Section 7.14. *Successors and Assigns*. The terms, provisions, covenants and conditions of this Tax Agreement shall bind and inure to the benefit of the respective successors and assigns of the parties to the Tax Agreement.

Section 7.15. *Headings*. The headings of this Tax Agreement are inserted for convenience only and shall not be deemed to constitute a part of this Tax Agreement.

Section 7.16. Governing Law. This Tax Agreement shall be governed by and construed in accordance with the laws of the State of Illinois.

Section 7.17. *Expectations*. The undersigned have reviewed the facts, estimates and circumstances presented by the Company and the Guarantors and other persons in existence on the date of issuance of the Bonds. Such facts, estimates and circumstances, together with the expectations of the Issuer, the Company and the Guarantors as to future events, are set forth in summary form in this Tax Agreement. Such facts and estimates are true and are not incomplete in any material respect. On the basis of the facts and estimates contained herein and in the Project Certificate, the undersigned have adopted the expectations contained herein. On the basis of such facts, estimates, circumstances and expectations, it is not expected that Sale Proceeds, investment earnings thereon or any other moneys or property will be used in a manner that will cause the Bonds to be arbitrage bonds within the meaning of the Rebate Provisions and the Regulations. Such expectations are reasonable and there are no other facts, estimates and circumstances that would materially change such expectations. To the extent the Issuer is relying on the representations, expectations and covenants of the Company or the Guarantors, it is reasonable and prudent for the Issuer to do so.

[SIGNATURES FOLLOW ON THE NEXT PAGE]

SIGNATURE PAGE OF THE TAX EXEMPTION CERTIFICATE AND AGREEMENT

IN **WITNESS** WHEREOF, we have executed this certificate as of the **date** first above written.

ILLINOIS FINANCE AUTHORITY

ATTEST:

By:

Secretary

SONIT

By:

Zyn M Hubbed

Executive

Director

(SEAL)

NORTH SHORE ICE ARENA**, LLC**

By:

Charles **O.** Smith, President

WILMETTE HOCKEY ASSOCIATION, INC.

By:

Charles **O.** Smith, President

WINNETKA HOCKEY CLUB, **INC.**

By:

Eric R. Lifvendahl, **Vice** President

SIGNATURE PAGE OF THE **TAX** EXEMPTION **CERTIFICATE** AND **AGREEMENT**

IN WITNESS WHEREOF, we have executed **this** certificate **as** of the date first **above** written.

ILLINOIS FINANCE AUTHORITY

By:

Executive Director

(SEAL
)

ATTEST:

By:

Secretary

NORTH SHORE ICE **ARENA,** LLC

By:

Glen J. Sutli

Charles O. Smith, President

WILMETTE HOCKEY ASSOCIATION, INC.

By: Glund. Suth Елина

Charles O. Smith, President

WINNETKA HOCKEY CLUB, **INC.**

By:

Eric R. Lifvendahl, **Vice President**

SIGNATURE PAGE OF THE TAX EXEMPTION CERTIFICATE AND AGREEMENT

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ILLINOIS FINANCE **AUTHORITY**

By:

Executive Director

(SEAL)

ATTEST:

By:

Secretary

NORTH SHORE **ICE** ARENA, LLC

By:

Charles **O. Smith**, President

WILMETTE HOCKEY **ASSOCIATION**, **INC.**

By:

Charles O. Smith, President

WINNETKA HOCKEY CLUB, INC.

By:

Eric **R.** Lifvendahl, Vigé President

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Sale Proceeds

EXHIBIT A

ESTIMATED SOURCES AND USES OF FUNDS

The **Sale** Proceeds **shall** be deposited or **used as** indicated below:

SOURCES OF FUNDS

Par Amount of Bonds

$8,490,000.00

Original Issue Discount (OID)

(131,891.15)

Estimated investment earnings on Project Fund

98.937.66

TOTAL SOURCES

$8,457,046.51

USES OF FUNDS

Project Fund	$7,196,093.81
Debt Service Reserve Fund (DSRF)	613,125.00
Capitalized Interest Account	480,665.52
Underwriter's Discount	167,162.18
TOTAL USES	$8,457,046.51

2.

Reimbursed Expenditures

Wilmette Hockey Association, Inc.	$76,047.25
Winnetka Hockey Club, Inc.	$60,436.08

EXHIBIT **B**

DRAWDOWN SCHEDULE OF BOND PROCEEDS

Date

Principal

Rate Interest -Transfers

1/25/2008

2/01/2008

3/01/2008

4/01/2008

3.0000000% (668.89**) 3.0000000**% 3,836.40 (3,167.51)

(3,349.45**) 3.0000000%** 19,202.72 **(**15,853.27)

Receipts Disbursements Cash Balance

0.05

0.05

0.05

0.05

771,642.22 **3.0000000**% **19,211.04** (**15,853,27**) 5/01/2008 1,158,973.15

3.0000000% 17,293.88 **(14,267.04**) 1,161,999.99 6/01/2008 1,547,474.33

3.0000000% 14,414.39 (**11,888.72**) **1,550,000.00**

774,999.99

775,000.00

0.04

1,162,000.0

0

0.03

1,550,000.00

0.03

7/01/2008

8/01/2008

9/01/2008

10/01/2008

1,160,146.59 **3.0000000%** 10,569.67 1,160,650.69 3.0000000%

7,687.26 (6,337.95) 1,162,000.00 1,161,156.01 3.0000000%

4,803.61 (3,959.63) 1,161,999.99 772,260.61 3.0000000%

1,918.69 (**1,581.31**) 772,597.99

(8,716.27) 1,161,999.99

1,162,000.00

0.02

1,162,000.00

0.02

1,162,000.0

0

0.01

772,598.00

Total

7,728,285.26

98,937.66 (81,624.97) 7,745,598.00

7,745,598.00

EXHIBIT C

GROSS PROCEEDS

In addition to the Sale Proceeds identified in Exhibit A, the anticipated investment proceeds in **the**

Project Fund, the Debt Service Reserve Fund and the Capitalized Interest Account are described in the attachments hereto.

EXHIBIT D

REIMBURSEMENT RESOLUTION

No declaration of official intent to reimburse expenditures was previously made in connection with the issuance of the Bonds.

EXHIBIT E

CERTIFICATE OF UNDERWRITER

THIS CERTIFICATE OF UNDERWRITER is dated January 25, 2008. The undersigned, Oppenheimer & Co. Inc. (the "Underwriter"), the underwriter of the Sports Facility Revenue Bonds (North Shore Ice Arena Project), Series 2008, issued in the aggregate **principal** amount of $8,490,000 (the "Bonds"), issued by the Illinois Finance Authority (the "Issuer") pursuant to the Trust Indenture, **dated** as of January 1, 2008 (the "Indenture"), between the Issuer and Amalgamated Bank of Chicago, of Chicago, Illinois, hereby certifies as follows:

1. The **initial** offering price (net of accrued interest) to the public (excluding bond houses, brokers or **similar** persons or organizations acting **in** the capacity of underwriters or wholesalers) of each maturity of the Bonds did not exceed the respective issue price of each maturity (expressed as a percentage of par) of the Bonds reported as follows:

Date of Maturity	Price	Dollar Price
12/01/2018	**98.987%**	$1,004,718.05
12/01/2028	98.544%	$**1,906,826.40**
06/01/2038		$1,474,800.00
12/01/2038	**98.320%**	$3,971,764.40
2.	**98.311%**	

A substantial amount (at least 10%) of each maturity of the Bonds was sold to the public (excluding bond houses, brokers or similar persons or organizations acting **in** the capacity of underwriters or wholesalers) at a **price** (net of accrued interest) not exceeding **the** respective issue price for each maturity of the Bonds **set** forth in Section 1 hereof.

3. On January 17, 2008 (**the** "Sale Date"), the date on which **the** Underwriter agreed to purchase the Bonds, based upon then prevailing market conditions, **the** Underwriter **had** no reason to **believe** that any of **the** 2008 Bonds would be **initially** sold to the public (excluding bond houses, brokers or similar persons or organizations acting in the capacity of underwriters or wholesalers) at prices exceeding the respective issue price for each **maturity** of the **2008** Bonds set forth **in** Section 1 hereof.

4.

The CUSIP Number for the last maturity of the Bonds is 45202U AS3

5. For the purpose of the Information Return for Tax-Exempt Private Activity Bond Issues required by Section 149(e) of the Internal Revenue Code of 1986, as amended, to be filed with the Internal Revenue Service in connection with the 2008 Bonds, the issue price of the 2008 Bonds is $8,358,108.85, exclusive of any accrued interest, and the weighted average maturity of the 2008 Bonds is not more than 21.566 years, being the sum of the products of the issue price of each maturity and the number of years to maturity (determined separately for each maturity and by taking into account mandatory redemptions) divided by the issue price of the entire issue.

6. No maturity of the 2008 Bonds was sold to the public as part of the bona fide public offering at an issue price that exceeds the stated redemption price at maturity by more than 1/4 of 1% multiplied by the product of the stated redemption price at maturity and the number of complete years to the first optional redemption date for such maturity (which is more than five years from the date of the issuance of the Bonds (the "Issue Date")). The composite yield on the 2008 Bonds is not less than 6.3195345 percent per annum. Such number is the discount rate that, when used in computing the present value as of the Issue Date of all unconditionally payable payments of principal of and interest on the 2008 Bonds, produces an amount equal to the present value, using the same discount rate, of the aggregate issue price of the 2008 Bonds as of the Issue Date.

7.

We have advised the Issuer, North Shore Ice Arena, LLC (the "Borrower"), and Wilmette Hockey Association, Inc. ("Wilmette Hockey Association"), Winnetka Hockey Club, Inc. ("Winnetka Hockey Club" and together with Wilmette Hockey Association, the "Guarantors"), and continue to believe as of the Issue Date, that the Debt Service Reserve Fund established under the Indenture and the deposit therein of $633,125 (the "Reserve Requirement") will provide a source of security necessary to

ensure the satisfactory marketability of the Bonds. The Reserve Requirement does not exceed an amount equal to the least of: (i) ten percent of the stated principal amount of the Bonds; (ii) the maximum annual principal and interest requirements on the Bonds; or (iii) one hundred twenty- five percent of the average annual principal and interest requirements on the Bonds:

8. To the best of our knowledge and belief, the facts, estimates and expectations set forth in this Certificate are true, correct, complete and reasonable and there are no other facts, estimates, expectations or circumstances which would materially change those set forth herein.

9. This Certificate may be relied upon by the Issuer, the Borrower and the Guarantors in executing and delivering their Tax Exemption Certificate and Agreement, dated the Issue Date and in filing IRS Form 8038 with respect to the Bonds, and may be relied upon by Barnes & Thornburg LLP, Bond Counsel, in rendering the opinion that the interest on the Bonds is excludable from gross income for federal income tax purposes.

[SIGNATURE FOLLOWS ON THE NEXT PAGE]

SIGNATURE PAGE OF CERTIFICATE OF UNDERWRITER

DATED the date first above written.

OPPENHEIMER & COINC.

By:
Bryan H. Nelson, Senior Vice President

EXHIBIT F

[FOLLOWS ON THE NEXT PAGE]

RYAN COMPANIES US, INC.
55 Shuman Boulevard, Suite 800
Naperville, 11. 60563-8490

January 23, **2008**

North Shore Ice Arena**, LLC**
PO Box 477
Wilmette, IL 60091

Re:
North Shore Ice Arena
Northbrook, IL
Ryan Project
#902-733

630-328-1100 &/ 630-328-1300 fix

Subj: Proportional Costs for Pro-Shop and Concession Areas

To Whom It May Concern:

As requested, please find below the grey box buildout costs for the pro-shop and concession areas:

Pro-Shop @ 1,077 s.f. @ $35/s.f. = $37,695

Concession @ 711 s.f. @$45/s.f. = $31,995

Concession Equipment Allowance = $75,000

TOTAL = $144,690

RYAN

BUILDING LASTING RELATIONSHIPS

Grey Box buildout costs are defined as concrete floors, interior walls and doors, wall finishes, ceiling finishes, code required fire protection, hvac, and electrical.

Should you require any further information, please do not hesitate to contact the undersigned at 630-328-1119.

Sincerely,

RYAN COMPANIES US, INC.

Erik J.
Magsamen
Senior Project Manager

Cc: File